

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Gardner	Team: Squad #06	CCRB Case #: 201701843	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/04/2017 1:00 AM	Location of Incident: § 87(2)(b)		18 Mo. SOL 9/4/2018		Precinct: 83
Date/Time CV Reported Sat, 03/04/2017 9:52 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/09/2017 11:40 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Losada	13658	953013	083 PCT
2. POM Mark Paredes	25196	951013	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mark Paredes	Abuse: PO Mark Paredes stopped § 87(2)(b)	A . Unsubstantiated
B . POM Michael Losada	Abuse: PO Michael Losada stopped § 87(2)(b)	B . Unsubstantiated
C . POM Mark Paredes	Abuse: PO Mark Paredes frisked § 87(2)(b)	C . Unsubstantiated

Case Summary

On March 4, 2017, at 9:52am, § 87(2)(b) contacted the Internal Affairs Command Center to file this complaint under log #17-8277 (see Board Review 14).

On March 4, 2017, at approximately 1a.m., § 87(2)(b) was attempting to gain access to his basement located at § 87(2)(b) to repair a power outage in his apartment. § 87(2)(b)'s neighbor, § 87(2)(b) stood by. An unmarked black SUV driven by PO Mark Paredes and PO Michael Losada from the 83rd Precinct stopped in front of the building. § 87(2)(b) approached the officers and they exited their vehicle. PO Paredes instructed § 87(2)(b) to place his hands in the air (**Allegations A and B**). The officers thought § 87(2)(b) was a burglar. PO Paredes asked § 87(2)(b) for identification. Given that § 87(2)(b)'s identification was inside of his residence, he could not provide it. PO Paredes frisked § 87(2)(b) (**Allegation C**) and then the officers left the scene. § 87(2)(b) was not arrested or issued any summonses regarding this incident.

Video Footage

There was no video footage obtained for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(b) did not file a Notice of Claim regarding this incident (see Board Review 5).

Civilian and Officer CCRB Histories

- This was the first CCRB complaint filed by § 87(2)(b) (see Board Review 6).
- PO Paredes has been a member of the service for 5 years and there have been 3 prior allegations in 1 complaint made against him. No complaints against him were substantiated § 87(2)(g).
- PO Losada has been a member of the service for 4 years and there has been 1 prior allegation in 1 complaint made against him. That case was administratively closed.

Potential Issues

Attempts to contact § 87(2)(b)'s neighbor § 87(2)(b) were unsuccessful. Please call letters were left in § 87(2)(b)'s building underneath § 87(2)(b) door, but he failed to contact the CCRB to provide a statement. Since § 87(2)(b) was unable to provide any contact information or a last name, Lexis Nexis searches of the name § 87(2)(b) and § 87(2)(b) yielded negative results.

§ 87(2)(b) was shown a photo viewing of PO Losada and PO Paredes and failed to identify the officers as subjects in this case (see Board Review 13).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) contacted the IAB Command Center at 9:52am on March 4, 2017, less than 9 hours after the alleged incident. He described PO Paredes as a white male dressed in full uniform, stocky build, bald, and believed his last name was “Pedra” or “Pedro.” § 87(2)(b) described PO Losada as a white male, standing approximately 6’3” tall, has a smaller build than PO Paredes, black hair, and dressed in full uniform. According to PO Paredes’ pedigree information, he is a light-skin Hispanic male, § 87(2)(b), and bald. According to PO Losada’s pedigree information, he is a white male, § 87(2)(b), and has brown hair. § 87(2)(b) also provided one of the officer’s shield numbers as 13685. A search of the CTS database for this number revealed that it belonged to PO Wilson from TARU. However, a search for a similar number in the 83rd Precinct confirmed that PO Losada shares a similar shield number, 13658 (see Board Review 14).

According to the tour 1 Roll Call on March 4, 2017, PO Paredes and PO Losada were assigned to work a Robbery Auto detail and they were assigned to RMP # § 87(2)(b) (see Board Review 7). Both officers acknowledged working together and they were assigned to this vehicle, and that the vehicle was unmarked. Although PO Paredes believed that he was working Anti-Crime and wearing plainclothes, a copy of the Roll Call was presented to him and he realized that he may have been mistaken. PO Losada acknowledged working Robbery Auto and wearing a full uniform on the incident date. Although neither officer had a memo book regarding the incident, both PO Paredes’ and PO Losada’s first and last memo book entries confirmed they were working at the time of the incident and they were assigned to unmarked vehicle # § 87(2)(b) (see Board Review 8 and 9). Although § 87(2)(b) did not recognize either officer from the photo arrays he was shown, it should be noted that his photo viewing was conducted over 3 months from the incident date § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: PO Mark Paredes stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Michael Losada stopped § 87(2)(b)

Allegation C – Abuse of Authority: PO Mark Paredes frisked § 87(2)(b)

§ 87(2)(b) stated that he was on his way home from a friend’s house when he noticed the lights in his apartment located at § 87(2)(b) in Brooklyn were not working. § 87(2)(b) was able to locate channel locks in his room and planned on using them to help him open the gate that leads to his basement door. § 87(2)(b) then walked upstairs to his neighbor § 87(2)(b) apartment and asked if he could borrow his key to the basement. § 87(2)(b) and § 87(2)(b) walked outside to the exterior of his apartment building and § 87(2)(b) used the channel locks in an effort to open the gate leading down his basement door. In less than one minute, he heard the sound of a vehicle stop in the middle of the street. § 87(2)(b) turned around and saw a black unmarked vehicle with two male occupants wearing police uniforms. PO Paredes and PO Losada watched § 87(2)(b) for a few seconds from their unmarked vehicle in the middle of § 87(2)(b) before § 87(2)(b) looked at them and said, “What’s the problem officers?” PO Paredes and PO Losada exited the vehicle and quickly approached § 87(2)(b). PO Paredes instructed him to

place his hands in the air and drop the channel locks. § 87(2)(b) complied with both requests. PO Paredes then placed his forearm into § 87(2)(b)'s chest, forcing § 87(2)(b) against the building's exterior. § 87(2)(b) asked the officers why he was being stopped and they eventually explained that he appeared to be a burglar due to the aggressive manner he tried to open the gate with the channel locks. The officers asked § 87(2)(b) for identification which he was unable to provide.

§ 87(2)(b) offered to go upstairs with the officers so he could locate his identification which the officers did not permit. PO Paredes told § 87(2)(b) that he may be trying to burglarize the home. § 87(2)(b) tried to explain again that he lived at that residence and then pointed to § 87(2)(b) to verify that information. PO Paredes then frisked § 87(2)(b). § 87(2)(b) told PO Paredes that he was not going to give him permission to search him. The officers left the scene shortly after without issuing § 87(2)(b) any summonses (**see Board Review 1**).

Attempts to locate § 87(2)(b)'s neighbor, § 87(2)(b) were unsuccessful, therefore he was unavailable to provide a statement. Moreover, as noted, § 87(2)(b) was unable to identify PO Paredes and PO Losada via a photo viewing.

Both PO Paredes and PO Losada did not recall this incident. Both officers were shown a photograph of § 87(2)(b) and provided details about the allegations as well as the incident location, but they were still unable to recall the incident. Both officers acknowledged that they could have been in the vicinity of § 87(2)(b) during the alleged incident time since their Robbery Auto assignment encompassed the entire 83rd Precinct (**see Board Review 2 and 3**). Neither officer had a memo book entry regarding the incident (**see Board Review 8 and 9**). Additionally there were no EVENT reports generated for this incident nor any Stop, Question and Frisk reports prepared (**see Board Review 12**).

§ 87(2)(b) admitted to trying to forcibly open the gate to his basement with a pair of channel locks at approximately 1am on the date of the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, and C** be closed as **Unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date